

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

6. S-CV-0050858 BROUSSARD, BRANDON v. GENERAL MOTORS

Defendant's Motion for Summary Judgment; or in the Alternative Summary Adjudication

Appearances of the parties are required at the hearing.

7. S-CV-0051858 VIVINT SOLAR DEVELOPER v. TYLER, GREGORY

Defendant Gregory Tyler's Counsel Ashley Monique DeGuzman's Motion to be Relieved as Counsel

The motion to be relieved as counsel is denied as moot in light of defendant's substitution of attorney filed with the court on May 1, 2026.

8. S-CV-0052893 RUIZ-ANGEL, ELIAN v. DEFENDER TREE SERVICE

Defendants Douglas W. Cunningham and Carlene J. Cunningham, Trustees of the Cunningham Family 1995 Trust dated February 16, 1995 Motion for Summary Judgment and/or Adjudication

Preliminary Matters

Defendants' request for judicial notice number 1 is denied. Defendants' request for judicial notice number 2 is granted.

Plaintiff's objection is sustained.

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

Defendants move for summary judgment or, in the alternative, summary adjudication as to plaintiff's first amended complaint ("FAC"). A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)

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In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff’s FAC alleges two causes of action against defendants: (1) negligence and (2) premises liability.

To state a claim for negligence and premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

Defendants argue both causes of action fail because they did not owe a duty to plaintiff as plaintiff was an employee of the independent contractor, defendant Defender Tree Service, LLC, defendants hired to perform tree services on their property.

The *Privette* doctrine, which defendants rely on, generally provides “a hirer is typically not liable for injuries sustained by an independent contractor or its workers while on the job.” (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 41.) In the summary judgment context, the moving party must establish “it hired an independent contractor to perform certain work, and that the plaintiff is an employee of the contractor who was injured in the course of the work, [then] the burden shifts to the opposing party to come forward with evidence raising a triable issue of fact as to whether an exception to the *Privette* doctrine applies.” (*Degala v. John Stewart Co.* (2023) 88 Cal.App.5th 158, 167.)

Defendants, as the moving party, bear the burden to establish that defendant Defender Tree Service, LLC, was hired as an independent contractor rather than as defendants’ employee. (*Blackwell v. Vasilas* (2016) 244 Cal.App.4th 160, 169.)

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Labor Code section 2750.5 creates “a rebuttable presumption affecting the burden of proof that a worker performing services for which a license is required . . . or who is performing such services for a person who is required to obtain such a license is an employee rather than an independent contractor. (Lab. Code, § 2750.5.) Defendants must establish three factors to show defendant Defender Tree Service, LLC was an independent contractor:

- (a) That the individual has the right to control and discretion as to the manner of performance of the contract for services in that the result of the work and not the means by which it is accomplished is the primary factor bargained for.
- (b) That the individual is customarily engaged in an independently established business.
- (c) That the individual's independent contractor status is bona fide and not a subterfuge to avoid employee status. A bona fide independent contractor status is further evidenced by the presence of cumulative factors such as substantial investment other than personal services in the business, holding out to be in business for oneself, bargaining for a contract to complete a specific project for compensation by project rather than by time, control over the time and place the work is performed, supplying the tools or instrumentalities used in the work other than tools and instrumentalities normally and customarily provided by employees, hiring employees, performing work that is not ordinarily in the course of the principal's work, performing work that requires a particular skill, holding a license pursuant to the Business and Professions Code, the intent by the parties that the work relationship is of an independent contractor status, or that the relationship is not severable or terminable at will by the principal but gives rise to an action for breach of contract.

(Lab. Code, § 2750.5, subds. (a)–(c).)

Moreover, “any person performing any function or activity for which a license is required . . . shall hold a valid contractors' license as a condition of having independent contractor status.” (Lab. Code, § 2750.5.) So, “the presumption of employee status can be rebutted only as to persons who hold a valid contractor's license; the presumption cannot be rebutted as to persons who do not hold a valid contractor's license.” (*Chin v. Namvar* (2008) 166 Cal.App.4th 994, 1004.)

Here, defendants meet their burden to establish they did not owe a duty to plaintiff because they hired defendant Defender Tree Service, LLC—who held a valid contractor’s license—as an independent contractor. (UMF Nos. 5–9, 11–12, 16, 20.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

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Plaintiff thereafter meets his burden to raise a triable issue of material fact as to whether defendant Defender Tree Service, LLC was defendants' independent contractor or employee such that the *Privette* doctrine does not apply. (Disputed UMF Nos. 5–6, 12; Additional UMF Nos. 3–5, 7–10.) Specifically, plaintiff presents evidence that defendant Defender Tree Service, LLC's contractor's license was suspended before, during, and after the incident giving rise to the litigation. In other words, defendant Defender Tree Service, LLC was required to have a contractor's license for the tree service performed on defendants' property pursuant to Business and Professions Code, section 7026.1, yet its license was suspended and therefore invalid, and the presumption in Labor Code section 2750.5 is that defendant Defender Tree Service, LLC was defendants' employee so the *Privette* doctrine is inapplicable.

Defendants' citation to *Chin v. Namvar* (2008) 166 Cal.App.4th 994 for the proposition that plaintiff is estopped from rebutting the presumption in Labor Code section 2750.5 is unavailing because the case stands for the proposition that defendant Defender Tree Services, LLC—as the one who represented itself as a licensed contractor—is estopped from asserting that its unlicensed status makes it an employee pursuant to Labor Code section 2750.5 not plaintiff who did not represent himself as a licensed contractor.

Accordingly, defendants' motion for summary adjudication is denied as to the negligence and premises liability causes of action and, therefore, their motion for summary judgment is denied.

9. S-CV-0053276 SANCHEZ, JOSE v. D & D CABINETS – SAVAGE

Mediation Status Conference

The mediation status conference is dropped from calendar in light of the parties joint mediation status conference statement filed with the court on June 16, 2026, that includes all the information required by the court.

10. S-CV-0053328 LAFAYETTE FEDERAL CREDIT v. BRATCHER, IRMA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$33,565.96 in